

1 **SENATE FLOOR VERSION**

2 April 23, 2025

3 **AS AMENDED**

4 ENGROSSED HOUSE

5 BILL NO. 1728

6 By: Moore, Archer, and Menz of
7 the House

8 and

9 Murdock of the Senate

10 [**invasive Salt Cedars - program - Oklahoma**
11 **Conservation Commission - funds - duties -**
12 **promulgation of rules and procedures - report -**
13 **Revolving Fund - deposits and expenditures -**
14 **codification - effective date -**

15 **emergency]**

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 3-8-201 of Title 27A, unless
19 there is created a duplication in numbering, reads as follows:

20 This act shall be known and may be cited as the "Salt Cedar
21 Eradication Act".

22 SECTION 2. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 3-8-202 of Title 27A, unless
24 there is created a duplication in numbering, reads as follows:

A. As used in this act:

1 1. "Eligible landowners" means private, tribal, and public
2 landowners in Oklahoma counties within the Upper Red River Basin;

3 2. "Eradication" means the removal or substantial reduction of
4 Salt Cedar populations to a level where they no longer pose a
5 significant threat; and

6 3. "Salt Cedar" means all species within the genus Tamarix
7 identified as invasive or noxious in Oklahoma.

8 B. There is hereby created a program to control and eradicate
9 invasive Salt Cedar species in Oklahoma counties within the Upper
10 Red River Basin and is to be administered by the Oklahoma
11 Conservation Commission in collaboration with the Oklahoma
12 Department of Agriculture, Food, and Forestry and the Oklahoma Water
13 Resources Board. To accomplish the goals listed in this section,
14 the Commission is authorized to use the funds available in the Salt
15 Cedar Eradication Revolving Fund established in Section 3 of this
16 act. The purpose of the program is to manage and eradicate invasive
17 Salt Cedar species in Oklahoma counties within the Upper Red River
18 Basin, to enhance water resources, restore native ecosystems, and
19 protect agricultural productivity.

20 C. The Oklahoma Conservation Commission, in collaboration with
21 the Oklahoma Department of Agriculture, Food, and Forestry and the
22 Oklahoma Water Resources Board, shall establish and oversee the Salt
23 Cedar eradication program which shall include:
24

1 1. Conducting surveys to identify and map Salt Cedar
2 infestations in Oklahoma counties within the Upper Red River Basin;
3 2. Developing and implementing science-based eradication
4 strategies, including mechanical removal, chemical treatments, and
5 biological controls;
6 3. Providing technical and financial assistance to eligible
7 landowners; and
8 4. Monitoring and evaluating the effectiveness of eradication
9 efforts.
10 D. The Oklahoma Conservation Commission shall establish
11 guidelines for participation, including cost-sharing arrangements
12 and reimbursement opportunities.
13 E. The Oklahoma Conservation Commission is authorized to
14 promulgate any rules and procedures to effectuate the provisions of
15 this act.
16 F. The Oklahoma Conservation Commission shall submit an annual
17 report to the Governor, Speaker of the Oklahoma House of
18 Representatives, the President Pro Tempore of the Oklahoma State
19 Senate, and the chairs of the appropriation committees of the
20 Oklahoma House of Representatives and the Oklahoma State Senate
21 outlining the following:
22 1. Progress of eradication efforts;
23 2. Expenditures and funding needs; and
24 3. Recommendations for continued Salt Cedar management.

1 SECTION 3. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 3-8-203 of Title 27A, unless
3 there is created a duplication in numbering, reads as follows:

4 There is hereby created in the State Treasury a revolving fund
5 for the Oklahoma Conservation Commission to be designated the "Salt
6 Cedar Eradication Revolving Fund". The fund shall be a continuing
7 fund, not subject to fiscal year limitations, and shall consist of
8 all monies received by the Oklahoma Conservation Commission from
9 appropriations, federal grants or funds, municipal contributions,
10 private contributions, and any other sources, including interest
11 earned from the income in the fund, that are designated for deposit
12 to such fund or designated for duties associated with removal and
13 eradication of Salt Cedars in Oklahoma counties within the Upper Red
14 River Basin. All monies accruing to the credit of said fund are
15 hereby appropriated and may be budgeted and expended by the Oklahoma
16 Conservation Commission to perform the duties imposed on the
17 Commission by law. Expenditures from said fund shall be made upon
18 warrants issued by the State Treasurer against claims filed as
19 prescribed by law with the Director of the Office of Management and
20 Enterprise Services for approval and payment.

21 SECTION 4. This act shall become effective July 1, 2025.

22 SECTION 5. It being immediately necessary for the preservation
23 of the public peace, health or safety, an emergency is hereby
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1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

3 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS
4 April 23, 2025 - DO PASS AS AMENDED
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